

The Claremont City Council held a meeting on Wednesday, February 8, 2023, in the Council Chambers of City Hall.

The meeting was called to order by Mayor Girard at 6:30 p.m.

Members of the Council present:

Ward I Councilor Andrew O’Hearne
Ward II Councilor James Contois
Ward III Councilor Jonathan Stone
Assistant Mayor Debora Matteau
At-Large Councilor Nicholas Koloski
At-Large Councilor William Limoges
At-Large Councilor Spencer Batchelder
At-Large Councilor Matthew Mooshian
Mayor Dale Girard

Also present:

Yoshi Manale, City Manager

AGENDA CHANGES

A motion was made by Assistant Mayor Matteau and seconded by Councilor Batchelder to suspend rules, to place a reconsideration of the second vote from the last council meeting back on the table.

Voice vote:

**O’Hearne – yes
Batchelder - yes
Stone - yes
Matteau - yes
Koloski - yes
Limoges - yes
Contois - opposed
Mooshian – opposed
Girard – yes
Motion carried 7-2**

REPORT OF THE SECRETARY

A motion was made by Assistant Mayor Matteau and seconded by Councilor Limoges to accept the minutes of the January 25, 2022, City Council meeting.

Voice vote:

O’Hearne – abstained

Batchelder - yes

Stone - yes

Matteau - yes

Koloski - abstained

Limoges - yes

Contois - yes

Mooshian - yes

Girard - yes

Motion carried 7-0, 2 abstained

MAYOR’S NOTES

Mayor Girard read a Proclamation for Kelly Dole’s retirement from the Department of Public Works.

Mayor Girard noted Parks and Recreation have a snowshoeing event at Friday at Moody Park, Sunday there is a 5k race, Friday February 17th is the father daughter dance at the community center.

Conservation Commission has a film “Becoming Wolf” presented at the Sugar Valley Tech Center on the 21st at 7pm.

Planning and Development have a brown bag luncheon with BEA broadband expansion, on the 23rd from 12PM to 1PM.

CITY MANAGER’S REPORT

City Manager Manale, informed everyone that the City received two proposals for the Community Center Consultants and one will be chosen by this week.

APPOINTMENT TO BOARDS AND COMMITTEES

A motion was made by Councilor O’Hearne and seconded by Councilor Batchelder to appoint Dylan Gelineau to the Alternate Seat 1 – Ward 1, of the Parks and Recreation Commission.

Voice vote:

O’Hearne – yes

Batchelder - yes
Stone - yes
Matteau - yes
Koloski - yes
Limoges - yes
Contois - yes
Mooshian - yes
Girard - yes
Motion carried 9-0

CITIZEN'S FORUM

Mayor Girard gave a reminder that all speakers have five minutes on non-agenda items.

Aaron Feustel, Ward 1 read from his handout he gave to Council:

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When the Director of Parks and Rec approached me wondering about the possibility that I might have put some soil and concrete on city park land, I could have pointed to my 2 year old permit and said I had permission, end of story. But I didn't.

When the City Council complained that I was "encroaching" on the rail trail property, I could have pointed to the meeting minutes of the Parks and Rec Board, where they specifically said it was not an encroachment, and then rejected all further arguments to remove it. But I didn't.

I could have just sat back and let the city bumble their way through when the Planning and Development department couldn't figure out where my house was on their plan view of the rail trail property, or even where the rail trail was. Instead I got a survey of my property at my own expense to help move things along.

At the second council meeting, when the city refused to give me the year I thought that I needed to remove the material, I could have thrown a fit and refused to do anything. But I didn't. In fact, I'd already gotten to work getting access across my property to the material the city wanted removed.

When the city pointed out that I could just use the rail trail to remove the material, and that I should just hire contractors to do it, I pointed out that driving heavy equipment over the trail would likely rut it out. When the city ignored me, I proceeded to do it by hand.

When the city refused to provide a written scope of work, defining what the completed project would look like in case I wanted to hire a contractor, I could have thrown a fit. Instead I just kept working.

Later in the project, the city tried to get me to sign a document which might have been considered the scope of work I'd requested months earlier. It had several incorrect statements, added a new demand that I not damage any wetlands, and would have extended my "deadline" by a couple weeks. I could have signed the document, then demanded the city locate and mark all such wetlands before I continued work. But I didn't.

Mid way through the project, I found that the roots of a city owned tree just on the other side of my property line were in the way, and working around it would add 2-4 weeks of work for me. I'd determined that I'd probably be done mid to late November without this delay, but the additional 2-4 weeks would require a pause for winter. Instead of just hacking through the roots to get the job done and risking the tree coming down, I asked to remove the tree. When the city said no, I made three different cases for its being in the city's best interest in the short, medium, and long term to remove the tree. When the city still declined, I offered to take it down myself. When the

city still declined, I even offered to replace the tree with a nice flowering tree that would look pretty in the spring. When the city still declined, I came before this council to request permission to take the tree down. When the council made it clear it had no interest in considering my request, I finished what I could without risk of freeze-thaw causing a hazard, and then paused for winter in hopes the city would change its mind.

When the city decided it was in a hurry and was going to complete the work in November, regardless of what I did, I was quite clear that I would not pay more than a proportional cost of the initial estimate to remove the material. I also offered a location which would accept the material for free, but the city declined.

After the city completed the work, I noticed they'd left 5-10 yards of material to reinforce the embankment. I could have thrown a fit, since this would still be considered an "encroachment" on the rail trail property, which was the justification for having me remove all the material. But I let it go.

When the city sent me a bill for 150% of the initial estimate (nearly \$600), I offered to pay \$250 if the city provided acknowledgement that the work was complete. \$250 would have been my costs: \$200 in gas and -\$50 in vehicle maintenance to remove the remaining material. The city has not acknowledged my offer, and has threatened me with legal action, with a deadline of February 15th. When evaluating whether you want to accept my offer or pursue legal action, I hope you will consider the following:

1) The city council didn't vote to give me access to the rail trail, they voted to tell parks and rec to give me access. This vote took place on June 22, and I was to have 90 days of access. 90 days from June 22 is September 20th. I was first granted written permission to use the rail trail on October 13th. From the time it was proposed, I'd stated that using heavy equipment on the rail trail would damage the trail. This permission did not include any language for the city to assume responsibility for any such damage, and I've not received any such written permission since. In the process of removing some of the material, the city proved me correct by rutting out the trail for a large amount of what they drove over.

2) Before the city started work, I pulled 95 loads of dirt and debris by hand over my property. The first 2-3 loads were 33x 5 gallon buckets, while the remaining loads were 34x buckets. Thus, each load was approximately 5/6ths of a yard of material or more, weighing about a ton per load, or about 95 tons total. 23 loads were from my property to gain access to the top of the terrace of material, and the remaining 72 loads were from the terrace itself, which required carrying them up 12-17 ft of elevation, or up

between 1.5-2 flights of stairs. That equates to about 3,230x 5 gallon buckets, about 780 from my property and about 2,450 from city property. Or, about 20 yards from my property and 60 yards from city property. I originally estimated that there were 112.5 yards of material on city property, and later reduced

that estimate to about 100 yards. Thus, I had about 40 yards to go when I paused work near the end of October. Each load took 2.5-3.5 hours, for a total of

-300 hours of labor over 4 month or the approximately 20 hours per week, not counting interacting with city representatives.

Rebecca Mackenzie, Ward 2, noted the Cultural Center off of Elm Street is having their ninth annual Koasek Snow Snake games held at Village Green in Alstead at 10AM on February 11th.

Norm Blouin, Ward 1, shared concern for the Planning and Development, and the Parks and Recreation Department.

Executive Council, Cinde Warmington, Executive Councilor for District 2. This is Ms. Warmington's second term, but first term representing Claremont after last year's re-districting. Executive Council Warmington noted focusing on broadband and community housing grants, and is looking forward to working with Claremont.

Rob Walker, Ward 1, mentioned Arrowhead is open this weekend, there will be a Pigskin 5K, tubing, and next weekend there is a cardboard sled race. Mr. Walker noted these are great opportunities to be outside.

OLD BUSINESS

A motion was made by Assistant Mayor Matteau and seconded by Councilor Stone to reconsider the 2nd vote from February 1st council meeting relative to removing Councilor Contois.

Roll call:

O'Hearne – yes

Batchelder - yes

Stone - yes

Matteau - yes

Koloski - yes

Limoges - yes

Contois - no

Mooshian - no

Girard - yes

Motion carried 7-2

NEW BUSINESS

Resolution 2023-23 Kiwanis Funds Acceptance

Director Lawrence, recognized all the Kiwanis club members that showed tonight to represent the resolution 2023-23.

RESOLUTION 2023-23

Kiwanis Funds Acceptance for Playground

BE IT RESOLVED by the Claremont City Council, after a public hearing duly noticed, that:

WHEREAS on January 20th 2023, Kiwanis Club of Claremont agreed to grant funding to the City of Claremont- Parks and Recreation Department for the purpose of replacing one of the City's aging playground structures;

WHEREAS items to be completed with funds may include but are not limited to: removal of existing playground structures at Barnes Park, cost of new playground structures, playground safety surfacing and border timbers;

WHEREAS the final contribution from Kiwanis Club of Claremont will be up to the amount of \$50,000.00 based on final costs of the project;

NOW THEREFORE BE IT RESOLVED to accept and expend the sum of \$50,000.00 from the Kiwanis Club of Claremont with no match, and no impact on the tax rate.

NOW THEREFORE BE IT RESOLVED that the City Council hereby authorizes the City Manager or his designees to undertake all actions and execute all documents as may be required to accept these funds.

BE IT FURTHER RESOLVED that the City Manager, or his designees, are hereby authorized to execute all documents and undertake all actions as may be required to implement this resolution. *(2/3 vote required)*

Dated this 8th day of February, 2023, the City of Claremont, County of Sullivan, State of New Hampshire.

A motion was made by Councilor Batchelder and seconded by Councilor O'Hearne to accept Resolution 2023-23.

Councilor Batchelder read Resolution 2023-23 into the record.

Mayor Girard opened a public hearing.

Members of the Kiwanis Club stated they are very proud to help children, and went on a quest to find a good project. The Kiwanis Club presented giant check.

Mayor Girard closed the public hearing.

Roll call:

O’Hearne – yes

Batchelder - yes

Stone - yes

Matteau - yes

Koloski - yes

Limoges - yes

Contois - yes

Mooshian - yes

Girard - yes

Motion carried 9-0

OLD BUSINESS CONTINUED

Assistant Mayor Matteau had Clerk to the City Council read the 2nd motion from the February 1st Council Meeting.

“a motion was made by Councilor Koloski and seconded by Councilor O’Hearne to remove sitting councilor Jim Contois for dereliction of duty for the failure to inform the Council of relative information he possessed while having a Council level discussion.”

Assistant Mayor Matteau noted the same eight Councilors who initially voted on this motion will vote again.

Assistant Mayor Matteau explained the reasoning for putting this motion back on the table was because at the end of the last meeting when Councilor Limoges asked Councilor Contois what his reasoning was for not sharing accurate information with the Council about the vote from the HDC. Assistant Mayor Matteau stated Councilor Contois’ response was - Mostly I don’t trust a lot of you guys. Matteau explained she feels this was not an honest mistake, instead it was deliberate by this statement of not trusting the Council.

Roll call:

O’Hearne – yes

Batchelder - no

Stone - yes

Matteau - yes

Koloski - yes

Limoges - yes
Contois - Recused
Mooshian - no
Girard - no
Motion carried 5-3

Historic District Commission Council Seat Discussion

Council agreed this item no longer needs to be addressed.

COMMITTEE REPORTS

Councilor Stone noted the Policy Committee had further discussion on the Ice Cream Truck Policy, and reviewed the Tree Policy, the next meeting will be on the 21st of February.

Assistant Mayor Matteau noted Planning didn't meet, and had to cancel their last meeting due to weather.

Mayor Girard noted the Airport Committee met in January, and discussed the Taxi-way Project.

Mr. Contois asked to add a committee report, Mayor Girard explained to him that he was voted off the Council 5-3.

FUTURE AGENDA ITEMS AND DIRECTIVES

Discuss Council Vacancy, Conservation Commission, and HDC Vacancy.

Mayor Girard added a Council Rule change, to suspend council rules to read explanation of proposed actions instead of Ordinances, add to the Agenda for the February 22nd meeting.

Councilor Koloski would like to see more cooperation between City Council Meetings and School Board meetings.

CONSULTATION WITH LEGAL COUNSEL

None.

ADJOURNMENT

At 720 p.m., a motion was made by Councilor O'Hearne and seconded by Assistant Mayor Matteau to adjourn.

Voice vote:
O'Hearne – yes

Batchelder - yes
Stone - yes
Matteau - yes
Koloski - yes
Limoges - yes
Mooshian - yes
Girard - yes
Motion carried 8-0 voice

Respectfully Submitted,

Julia A. Bizzarro
Clerk to the Council